



Migrants' rights to liberty and family life have been upheld in cases judged by the European Court of Human Rights, but not all governments agree.

in *Stoll v. Switzerland*, the ECtHR found that the fine, although it had restricted Stoll's right to free expression, was justified in order to protect confidential negotiations.

Some rights, such as Articles 5 and 6, affect a person's interaction with state courts and criminal justice systems. Article 2, the right to life, has also been interpreted as requiring countries to ensure their police forces investigate suspicious deaths. After British Special Forces (SAS) killed three suspected IRA terrorists in Gibraltar in 1988, the ECtHR in 1995 criticized the British investigation into their deaths as being flawed and secretive.

Article 3, amended in 2008, now requires police forces actively to prevent certain types of crimes involving inhuman or degrading treatment. In 2018, victims of the serial sex offender known as the "black cab rapist" successfully argued at the UK Supreme Court

that Article 3 of the Convention placed a responsibility on London's police to investigate and attempt to prevent sex crimes.

Controversial decisions

The right to participate in elections, as set out in 1954 in Article 3 of Protocol No. 1, has been interpreted by the ECtHR as not allowing countries to completely ban their prisoners from voting. This has proved controversial in some countries; the UK and Russia both strongly objected to this decision.

Some rights in the Convention protect personal interests, such as the rights to privacy (Article 8) and religious freedom (Article 9). In 2011, France banned the wearing of face coverings, including the burqa and other religious attire, anywhere in public. In the 2014 case *S.A.S. v. France*, the ECtHR ruled that the ban had not violated Article 9, but

Amal Clooney, an international human rights lawyer, successfully represented the Republic of Armenia in a 2015 ECtHR case about a denial of Armenian genocide.

the judgment was criticized for being too deferential to the French government's policy of secularism and not protecting the rights of the women affected by the ban.

Advancing human rights

The Council of Europe is the body responsible for applying political pressure on countries to implement ECtHR decisions. Most states comply, even with decisions that they lose, but in the mid-2010s, concerns arose about long-term noncompliance with some decisions. Only one state has formally left the Convention—Greece, in the late 1960s after a military coup, though it later rejoined after the restoration of democracy. In 2015, Russia passed a law allowing its own courts to ignore ECtHR decisions.

Despite these setbacks, the decisions of the European Court of Human Rights are still cited around the world and have been important in advancing human rights issues, from abolition of the death penalty to protection of LGBTQ rights. ■

